

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1568
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 16-449, Arizona Revised Statutes, is amended to
3 read:

4 16-449. Required test of equipment and programs: notice:
5 procedures manual

6 A. Within the period of time before the election day prescribed by
7 the secretary of state in the instructions and procedures manual adopted
8 pursuant to section 16-452, the board of supervisors or other ~~election~~
9 officer in charge ~~OF ELECTIONS~~, or for an election involving state or
10 federal candidates, the secretary of state, shall ~~have~~ TEST the automatic
11 tabulating equipment and programs ~~tested~~ to ascertain that the equipment
12 and programs will correctly count the votes cast for all offices and on
13 all measures ~~AND THAT ANY INTERNAL CLOCKS AND TIMEKEEPING FUNCTIONS COMPLY~~
14 ~~WITH SECTION 16-449.01~~. Public notice of the time and place of the test
15 shall be given at least forty-eight hours ~~prior thereto~~ ~~BEFORE THE TEST~~ by
16 publication once in one or more daily or weekly newspapers published in
17 the town, city or village using such equipment, if a newspaper is
18 published ~~therein~~ ~~IN THE TOWN, CITY OR VILLAGE~~, otherwise in a newspaper
19 of general circulation ~~therein~~ ~~IN THE AREA AFFECTED~~. The test shall be
20 observed by at least two election inspectors, who shall not be of the same
21 political party, and shall be open to representatives of the political
22 parties, candidates, the press and the public. The test shall be
23 conducted by processing a preaudited group of ballots so marked as to
24 record a predetermined number of valid votes for each candidate and on
25 each measure and shall include for each office one or more ballots that
26 have votes in excess of the number allowed by law in order to test the
27 ability of the automatic tabulating equipment and programs to reject such
28 votes. ~~THE TEST ALSO SHALL INCLUDE VERIFICATION THAT THE INTERNAL CLOCKS~~
29 ~~OF THE EQUIPMENT AND PROGRAMS ARE SET AND MAINTAINED AS PRESCRIBED BY~~
30 ~~SECTION 16-449.01 AND THAT ANY DEVIATION IS CORRECTED AND RETESTED~~. If
31 any error is detected, the cause ~~therefor~~ ~~FOR THE ERROR~~ shall be
32 ascertained and corrected and an errorless count shall be made before the
33 automatic tabulating equipment and programs are approved. A copy of a
34 revised program shall be filed with the secretary of state within
35 forty-eight hours after the revision is made. If the error was created by
36 automatic tabulating equipment malfunction, a report shall be filed with
37 the secretary of state within forty-eight hours after the correction is
38 made, stating the cause and the corrective action taken. The test shall
39 be repeated immediately before the start of the official count of the

1 ballots in the same manner as set forth ~~above~~ IN THIS SUBSECTION. After
2 the completion of the count, the programs used and the ballots shall be
3 sealed, retained and disposed of as provided for paper ballots.

4 B. Electronic ballot tabulating systems shall be tested for logic
5 and accuracy within seven days before their use for early balloting
6 pursuant to the instructions and procedures manual for electronic voting
7 systems that is adopted by the secretary of state as prescribed by section
8 16-452. The instructions and procedures manual shall include procedures
9 for the handling of ballots, the electronic scanning of ballots and any
10 other matters necessary to ensure the maximum degree of correctness,
11 impartiality and uniformity in the administration of an electronic ballot
12 tabulating system.

13 C. Notwithstanding subsections A and B of this section, if a county
14 uses accessible voting equipment to mark ballots and that accessible
15 voting equipment does not independently tabulate or tally votes, the
16 secretary of state in cooperation with the county officer in charge of
17 elections may designate a single date to test the logic and accuracy of
18 both the accessible voting equipment and electronic ballot tabulating
19 systems.

20 Sec. 2. Title 16, chapter 4, article 4, Arizona Revised Statutes,
21 is amended by adding section 16-449.01, to read:

22 16-449.01. Election systems and software; time accuracy
23 requirements; violation; classification;
24 definitions

25 A. BEFORE THEIR USE DURING AN ELECTION PERIOD, ALL ELECTION SYSTEMS
26 AND SOFTWARE SHALL HAVE THEIR CLOCKS AND INTERNAL TIMEKEEPING FUNCTIONS
27 SET TO AND MAINTAINED AT THE ACCURATE CURRENT TIME, WITHIN SIXTY SECONDS
28 OF THE OFFICIAL TIME AS PROVIDED BY THE NATIONAL INSTITUTE OF STANDARDS
29 AND TECHNOLOGY AND AS ADJUSTED FOR THE APPROPRIATE TIME ZONES IN THIS
30 STATE. THIS SECTION APPLIES THROUGHOUT THE ELECTION PERIOD AND INCLUDES
31 ALL TIMESTAMPS THAT ARE GENERATED FOR LOGS, RECORDS, AFFIDAVITS, CURE
32 PERIODS, BALLOT ISSUANCE AND BALLOT PROCESSING AND FOR TEST AND AUDIT
33 PURPOSES.

34 B. FOR ELECTION SYSTEMS AND SOFTWARE UNDER THEIR RESPECTIVE
35 STATUTORY AUTHORITY AND DUTIES, THE BOARD OF SUPERVISORS, OR OTHER OFFICER
36 IN CHARGE OF ELECTIONS, AND THE COUNTY RECORDER, SHALL:

37 1. SET AND VERIFY COMPLIANCE WITH SUBSECTION A OF THIS SECTION
38 DURING PREELECTION PREPARATION, PROGRAMMING, DATA ENTRY, SYSTEM SETUP AND
39 VOTER REGISTRATION ACTIVITIES.

40 2. VERIFY COMPLIANCE AS PART OF EACH REQUIRED TEST AND REVIEW OF
41 EQUIPMENT AND ELECTION SYSTEMS AND SOFTWARE, INCLUDING ALL OF THE
42 FOLLOWING:

43 (a) LOGIC AND ACCURACY TESTING PRESCRIBED BY SECTION 16-449.

44 (b) ANY COMPATIBILITY REVIEWS FOR VOTER REGISTRATION SYSTEMS UNDER
45 SECTION 16-168.

46 (c) ANY SECURITY REVIEWS FOR VOTER REGISTRATION SYSTEMS UNDER
47 SECTION 16-168.

48 3. MAINTAIN AND REVERIFY TIME ACCURACY DURING THE ELECTION PERIOD,
49 INCLUDING ON ELECTION DAY AND DURING CENTRAL COUNTING, EARLY BALLOT

1 PROCESSING, SIGNATURE VERIFICATION AND ALL OTHER PROCESSES PRESCRIBED BY
2 THIS SECTION.

3 4. PERFORM AND DOCUMENT A FINAL TIME ACCURACY VERIFICATION AS PART
4 OF POSTELECTION PROCEDURES, INCLUDING FOR THE CANVASS AND ANY AUDITS,
5 RECOUNTS AND CHAIN OF CUSTODY REVIEWS IN WHICH TIMESTAMPS ARE MATERIAL.

6 C. THE SECRETARY OF STATE SHALL INCLUDE PROCEDURES FOR ALL
7 VERIFICATIONS REQUIRED BY SUBSECTION B OF THIS SECTION IN THE INSTRUCTIONS
8 AND PROCEDURES MANUAL ADOPTED PURSUANT TO SECTION 16-452, INCLUDING
9 METHODS, FREQUENCY AND RESPONSIBLE PERSONNEL AND ANY CORRECTIVE ACTIONS
10 FOR NONCOMPLIANCE.

11 D. A PERSON WHO VIOLATES THIS SECTION IS GUILTY OF A CLASS 2
12 MISDEMEANOR.

13 E. FOR THE PURPOSES OF THIS SECTION:

14 1. "ELECTION PERIOD" MEANS THE TIME FROM INITIAL PREPARATION,
15 PROGRAMMING AND DATA ENTRY FOR AN ELECTION THROUGH THE FINAL CANVASS,
16 CERTIFICATION OF RESULTS AND COMPLETION OF ANY REQUIRED POSTELECTION AUDIT
17 OR RECOUNT.

18 2. "ELECTION SYSTEM AND SOFTWARE":

19 (a) MEANS ALL HARDWARE, SOFTWARE, DATABASES, ELECTRONIC POLLBOOKS,
20 VOTER REGISTRATION SYSTEMS, SIGNATURE VERIFICATION SYSTEMS, EARLY BALLOT
21 PROCESSING EQUIPMENT, ACCESSIBLE VOTING DEVICES, AUTOMATIC TABULATING
22 EQUIPMENT, ELECTRONIC VOTING SYSTEMS, VOTE RECORDING DEVICES, BALLOT
23 SCANNERS, BALLOT PRINTERS, ELECTION MANAGEMENT SYSTEMS AND STATEWIDE VOTER
24 REGISTRATION DATABASE INTERFACES.

25 (b) INCLUDES ANY OTHER TECHNOLOGY USED TO REGISTER VOTERS, PROCESS
26 BALLOTS, RECORD VOTES, TABULATE RESULTS, VERIFY SIGNATURES, GENERATE LOGS,
27 TRACK CHAIN OF CUSTODY, CONDUCT AUDITS AND CERTIFY ELECTION OUTCOMES IN AN
28 ELECTION CONDUCTED PURSUANT TO THIS TITLE."

29 Amend title to conform

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